

TENTATIVE RULINGS

Perzow Antiaging General Partnership

v.

Philip Lee Miller, et al.
(and Related Cross-Claim)

23CV000647

Philip Lee Miller, M.D.'s Motions to:

1. [Vacate and Set Aside Dismissal](#);
2. [Leave to File a First Amended Cross-Complaint](#); and
3. [Compel Responses to Special Interrogatories and Request for Sanctions](#).

Hearing Date: September 18, 2026

NOTE REGARDING TENTATIVE RULINGS

Each tentative ruling becomes the Court's order, and no hearing shall be held unless a party contests. [Cal. Rules of Ct., rule 3.1308; Super. Ct. Monterey County, Local Rules, rule 7.9.] The party wishing to present oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT, AND THE RELATED HEARING WILL BE VACATED.** You must notify the Court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

Philip Lee Miller, M.D.'s Motion to Vacate and Set Aside Dismissal

The motion of Philip Lee Miller, M.D., in his individual capacity (“Dr. Miller”), to vacate and set aside the Clerk’s dismissal filed on June 22, 2026 (the “Dismissal”), is **DENIED AS MOOT**.

The Dismissal removed Dr. Miller only from the operative Second Amended Complaint of Plaintiff Perzow Antiaging General Partnership (“Plaintiff”), rather than the entire action. In other words, the Cross-Complaint filed by Dr. Miller and Philip Lee Miller, M.D., a Professional Corporation (“Miller Corp.”) (collectively, “Cross-Complainants”) on December 2, 2024, was never dismissed, never extinguished by order, and no motion under Code of Civil Procedure section 581, subdivision (f)(2), was ever filed to dismiss for failure to amend. Plaintiff’s opposition confirms this interpretation: the Second Amended Complaint continues against Miller Corp. and the Cross-Complaint survived the Dismissal untouched. Therefore, through the pending Cross-Complaint, Dr. Miller’s standing as a party to this action remains intact.

In light of the ruling below granting Cross-Complainants leave to file a First Amended Cross-Complaint, the purpose of the set-aside motion has been fulfilled. Treating this motion as moot is consistent with the function of Code of Civil Procedure section 473, subdivision (d), of correcting record ambiguity without entering an unnecessary order “reinstating” Dr. Miller, whom the law already treats as an active cross-complainant.

Accordingly, Dr. Miller’s motion to vacate and set aside the Dismissal is **DENIED AS MOOT**. The Court shall prepare the Order.

Philip Lee Miller, M.D.'s Motion for Leave to File a First Amended Cross-Complaint

The motion of Cross-Complainant Philip Lee Miller, M.D., in his individual capacity (“Dr. Miller”) for leave to file a First Amended Cross-Complaint is **GRANTED**. Leave is granted only as to Dr. Miller, as requested. Cross-Complainant Philip Lee Miller, M.D., a Professional Corporation (“Miller Corp.”) remains unrepresented, and may not appear except through licensed counsel. [*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.] No relief is granted on behalf of Miller Corp.

The Court shall prepare the Order. Dr. Miller has five days from the date of service of the Order to file and serve the First Amended Cross-Complaint that conforms with this Tentative Ruling. Cross-Defendant Perzow Antiaging General Partnership (“Cross-Defendant”) shall file its responsive pleading to the First Amended Cross-Complaint within 30 days of service.

Background.

On March 6, 2025, Cross-Defendant filed and served its demurrer to the Cross-Complaint. The demurrer was unopposed.

On June 11, 2025, the Court posted its Tentative Ruling. In sum, the Court tentatively ruled that Cross-Defendant’s demurrer to all causes of action in the Cross-Complaint is sustained with leave to amend. The Court ordered Cross-Defendant to “prepare the court’s order consistent with this tentative ruling.” Dr. Miller and Miller Corp. were given 45 days from the date of the Court’s order to file their First Amended Cross-Complaint.

Rather than lodging a proposed order, Cross-Defendant filed a “Notice of Ruling” on June 13, 2025, stating that a “copy of the Court’s tentative ruling, which became the order of the court, is attached hereto as Exhibit A.”

Over a year later, on July 20, 2026, Dr. Miller sought leave to file a First Amended Cross-Complaint, stating that “no signed order was ever entered on the demurrer to the Cross-Complaint, and the time to amend fixed by the Court’s tentative ruling – forty-five days from ‘the date of the court’s order’ – has therefore never commenced, so that the Cross-Complaint remains pending and the amended pleading may be filed with the Court’s leave in the ordinary course.” [Notice of Motion at 2-3.] Cross-Defendant opposes the motion on several grounds, primarily arguing that “the Court made its order on June 12, 2025,” and “the time to amend the Cross-Complaint expired on July 28, 2025.” [Opp. at 4.]

Discussion.

Dr. Miller is correct that the time to file a First Amended Cross-Complaint never began. The June 11, 2025, Tentative Ruling explicitly directed Cross-Defendant to “prepare the court’s order.” Cross-Defendant did follow the Court’s directive. Instead, Cross-Defendant filed and served a “Notice of Ruling.” That document was prepared by counsel – not by the Court – and did not satisfy the requirement for a formal court order where the Court itself has required one. When a court calls for a written order, a minute order or tentative ruling is not the final order.

[*See McHale v. State of Cal.* (1981) 125 Cal.App.3d 396, 399 (“It is well settled that when a court enters a minute order which does not call for the preparation and filing of a formal order, the minute order is final and all legal consequences ensue therefrom”); *see also* Cal. Rules of Ct., rule 3.1312, subd. (a) (outlining the procedures the party prevailing on any motion must follow to prepare the proposed order).] Therefore, Dr. Miller’s time to amend has not yet commenced.

Assuming, for the sake of argument, that the tentative ruling accompanying the Notice of Ruling meets the requirements of Code of Civil Procedure section 472b and that the period to amend begins upon service of the decision or order, a broad interpretation of section 426.50 to prevent the loss of a cause of action is essential. [*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99 (“A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake, or other causes are insufficient grounds to deny the motion unless accompanied by bad faith.”).] Dr. Miller’s current Cross-Complaint was filed when Plaintiff asserted causes of action against him in the operative Complaint, and Plaintiff’s later dismissal of Dr. Miller cannot strip him of his standing as a Cross-Complainant. Any issues regarding the adequacy of the First Amended Cross-Complaint can be addressed through a responsive pleading, such as a demurrer, motion to strike, or motion for judgment on the pleadings. Finally, although there has been a notable delay in seeking leave to amend, the unique history of this case, including Dr. Miller’s former attorney’s disbarment, should be considered. In sum, Cross-Defendant has not demonstrated bad faith on Dr. Miller’s part.

Conclusion.

Dr. Miller’s motion is **GRANTED**. He has five days from the date of service of the Order, which the Court will prepare, to file and serve the First Amended Cross-Complaint. Cross-Defendant has 30 days from the date of service to file its responsive pleading.

Philip Lee Miller, M.D.'s Motion to Compel Responses to Interrogatories and for Sanctions

The motion of Philip Lee Miller, M.D., in his individual capacity (“Dr. Miller”), for an order compelling Plaintiff Perzow Antiaging General Partnership (“Plaintiff”) to respond to his Special Interrogatories, Set One, is **DENIED**.

First, consistent with Code of Civil Procedure section 2030.060, subdivision (b), the Special Interrogatories show that Dr. Miller is the “Propounding Party.” [Special Interrogatories, Exh. A to Dr. Miller Decl. at 1:14-15.] However, on June 22, 2026, this Court entered Plaintiff’s dismissal of Dr. Miller from the operative Complaint without prejudice. Consequently, Dr. Miller is no longer a “Propounding Party.” [Code Civ. Proc. 2030.010, subd. (a).]

Second, even assuming arguendo that Dr. Miller remains a defendant in this action, the Special Interrogatories were directed to non-party Adam Perzow: “The following instructions are issued in connection with [Dr. Miller’s] First Set of Interrogatories to Plaintiff Adam Perzow.” [Special Interrogatories, Exh. A to Dr. Miller Decl. at 1:18-19.] Further, in his Special Interrogatories, Dr. Miller defined “Plaintiff/You/Your” to mean “Adam Perzow, individually and doing business under any name, designation, or partnership...” [*Id.* at 5:4-11.] Discovery directed to non-party Mr. Perzow cannot be compelled without a subpoena. [See Code Civ. Proc. §§ 2020.310, 2020.510, 2028.010, and 2020.410.]

Third, the Court rejects Dr. Miller’s argument that the contradictory language in the Special Interrogatories is not a substantive defect precluding enforcement. Dr. Miller must comply with the Discovery Act and be held to the same standards as other parties. Subjecting a non-party to an order compelling a response to party-specific discovery violates California law.

Finally, Dr. Miller’s request for monetary sanctions is **DENIED**. As detailed above, he did not prevail on his motion.

The Court shall prepare the Order.